

RYAN v. HUTCHINSON

19CV44070

PLAINTIFF'S MOTION FOR LEAVE TO SUBSTITUTE PARTY-DEFENDANT

This is a personal injury action stemming from an altercation between plaintiff and defendant occurring on 12/06/18. Defendant died on 11/21/22. Before the Court is a renewed motion by plaintiff to substitute defendant's estate as a party-defendant. Although the previous motion was expressly unopposed, it was denied based on abatement concerns.

Pursuant to CCP §377.41, "on motion, the court shall allow a pending action or proceeding against the decedent **that does not abate** to be continued against the decedent's personal representative or, to the extent provided by statute, against the decedent's successor in interest, **except that** the court may not permit an action or proceeding to be continued against the personal representative unless proof of compliance with Part 4 (commencing with Section 9000) of Division 7 of the Probate Code governing creditor claims is first made."

According to plaintiff, an estate has been opened on behalf of defendant/decedent (see 22PR8585) and a personal representative appointed (Christine Eberle). Pursuant to CCP §1250.220(b), she would be the proper individual to name. In addition, plaintiff provides proof of compliance with Probate Code §9370 by having filed a creditor claim which was denied, prompting what amounts to a motion to enforce (see 22PR8585).

Nevertheless, there is a service anomaly. Attorney Brian Chavez-Ochoa appeared on behalf of defendant early in the case, but then made an appearance on behalf of personal representative Christine Eberle (see 03/15/23 filing). However, on 07/28/23, he filed a "Request for Judicial Notice" stating that he did not represent the estate. This later filing is a nullity, as since he appeared on behalf of the "estate" on 03/15/23, a Substitution or Motion to Withdraw is required. This Court can see that the estate is also represented by Attorney Theresa Haefele – who did not receive notice of this motion, but of whom plaintiff's counsel is aware since he served plaintiff's creditor claim directly on her (as well as Attorney Chavez-Ochoa). This Court is confused as to why service of this motion was not also made on Attorney Haefele, who is apparently "lead" for the probate action.

Motion continued to October 6, 2023, at 9:00 a.m. in Department 2. Plaintiff shall immediately effectuate proper service of the motion on all lawyers representing the estate; and if there is no opposition intended, the parties are encouraged to file a

stipulation and order allowing the substitution so this civil case can proceed post haste. If there is to be opposition, it must be filed and served at least 10 court days prior to the next hearing.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order is required.

DeREIS v. BURKE

21CV45133

MOTION TO RELATE CASES

This is a civil action for partition of real property. There exists in this Court a probate action (10PR7129) involving the same family members and patriarchal assets. A notice of related cases was recently filed and served by one branch of the family (defendant in the civil action) on 05/05/23, and no response (see CRC 3.300(g)) was made thereto.

Cases are considered related to one another if they “(1) involve the same parties and are based on the same or similar claims; (2) arise from the same or substantially identical transactions, incidents, or events requiring the determination of the same or substantially identical questions of law or fact; (3) involve claims against, title to, possession of, or damages to the same property; or (4) are likely for other reasons to require substantial duplication of judicial resources if heard by different judges.” (CRC 3.300(a).) Both the probate and the civil actions involve property that was allegedly devised by will to one or more individuals who claim adverse interests thereto. Although there is not perfect parity between the two actions, it is apparent that the “probate” issues overlap (and possibly consume) the “civil” issues. There is no opposition from the other branch of the family, which signals a strong concession that the two causes ought to be related.

Motion to relate is GRANTED. Per CRC 3.300(h)(1)(C), the cases shall be assigned to be heard in Department 2. Although the motion to relate did not include a typical request to consolidate for purposes of discovery, this Court finds that such an order is warranted to avoid the inevitable duplication. The probate action (10PR7129), as the earlier case filed, and the one specializing in the handling of decedent’s assets, shall serve as the lead case, and all future filings shall be made in said case.

The Clerk shall provide notice of this Ruling to the parties forthwith. Counsel for Ms. Burke to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.